

HOUSE No. 3697

The Commonwealth of Massachusetts

PRESENTED BY:

Steven S. Howitt

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act requiring the use of helmets for electronically propelled wheeled vehicle operators and passengers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>1/14/2025</i>

HOUSE No. 3697

By Representative Howitt of Seekonk, a petition (accompanied by bill, House, No. 3697) of Steven S. Howitt relative to requiring the use of helmets for electronically propelled wheeled vehicle operators and passengers. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE DOCKET, NO. 5363 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring the use of helmets for electronically propelled wheeled vehicle operators and passengers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 85 of the Massachusetts General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after Section 11D the following section:-

3 Section 11D1/2. Any person operating an electric scooter, bicycle, skateboard, or other
4 electronically propelled wheeled vehicle, including hybrid electric bicycles, on a public way,
5 bicycle path or on any other public right-of-way shall wear a helmet. Such helmet shall fit the
6 person's head and be secured by straps at all times and shall meet the standards for helmets
7 established by the American National Standards Institute (ANSI Z 90.4) or the Snell Memorial
8 Foundation's 1984 standard for use in bicycling. A violation of this section shall not be used as

9 evidence of contributory negligence in a civil action. Nothing in this section shall require
10 individuals operating a motorized wheelchair to wear a helmet.

11 A city or town shall be prohibited from adopting any by-laws or ordinances to change the
12 standards required by this section.